

BEFORE THE LICENSED PROFESSIONAL COUNSELOR EXAMINERS BOARD

STATE OF COLORADO

Case No.2008-003058

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF TAMI HANNA, LPC, LICENSE NO. 2393,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado State Licensed Professional Counselor Examiners Board ("Board") and Tami Hanna, ("Respondent") as follows:

1. The Board has jurisdiction over the Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed in the State of Colorado to practice as a professional counselor on December 10, 1999, as was so licensed at all times relevant herein.
3. This Order is a full and final resolution of case 2008-003058. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent entered into a personal friendship with a former client, and hired the former client as an employee after 14 months of terminating the therapeutic relationship;
 - b. During the time Respondent was in a professional counseling relationship with a family, a former client and current employee of Respondent had a personal relationship with one of the family members, initially without Respondent's knowledge. Respondent became invested in the family relationships to the point that Respondent's roles and professional judgment became confused and undefined.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §§ 12-43-222(1)(b), (g), and (i), C.R.S.

6. Based on Respondent's actions and the admissions in paragraphs 4 and 5 above, the Board determines that the following disciplinary action is necessary to protect the public health, safety, and welfare, and hereby orders that Respondent is subject to discipline as follows.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado will be on probation for three (3) years commencing from the date that Respondent's practice monitor is approved by the Board. During the probationary period, Respondent shall be bound by the terms and restrictions set forth below. If at any time Respondent is not in compliance with the terms and restrictions of probation, including having a practice monitor in place, Respondent shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Respondent shall report to the Board if she discontinues the practice of professional counseling, and Respondent shall notify the Board upon resuming the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a licensed professional counselor in the State of Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing to the satisfaction of the Board that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the term of probation, Respondent's practice shall be monitored by a practice monitor.

13. Respondent shall, within 30 days of the date this Order is approved by the Board, submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential practice monitor, with attached curriculum vita or resume. The proposed practice monitors shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and

- b. It is recommended that the practice monitor have a minimum of five years experience and not have been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

14. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring.

15. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order; the complaint and responsive documents; all investigative reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions **that occur at least once a month for at least one hour, or such longer time as the practice monitor deems necessary.** During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her patients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for the determination. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

21. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another Board-approved practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until she has another Board-approved practice monitor in place.

22. Respondent may, at any time after 18 months of successful probation and monitoring, petition the Board to be released from further monitoring and probation. The Board may, at its sole discretion, grant or deny such request, in whole or in part.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete at least twenty (20) hours of Board-approved professional continuing education courses *each year* in the areas of boundary issues, dual relationships, confidentiality, legal/ethical issues related to the practice of professional counseling, and record keeping. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in the Mental Health Practice Act, §12-43-101, *et. seq.*, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with the practice monitoring, education, or any other expenses incurred in fulfilling the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

27. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that

Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent expressly waives her right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring.

28. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. Respondent shall obey all state and federal laws while this Order is in effect.

34. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

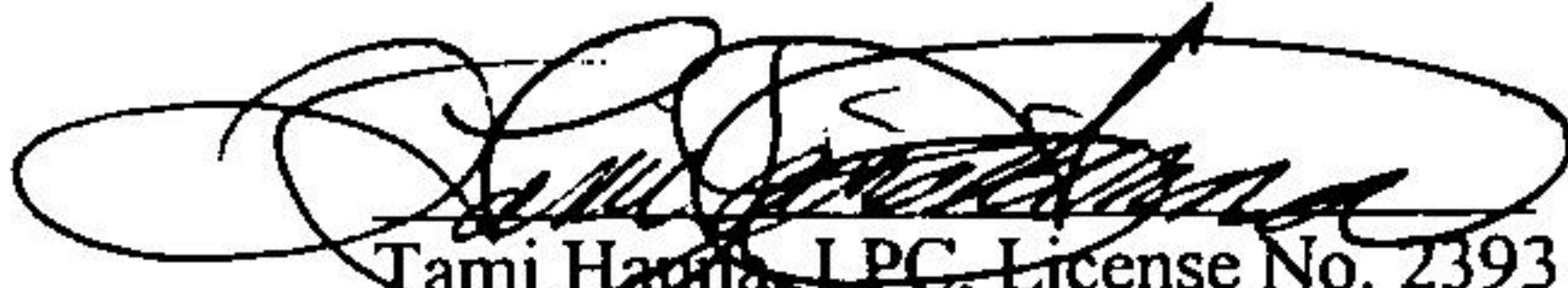
35. This Order shall become effective when accepted and signed on behalf of the Board.

36. This Order shall be admissible as evidence at any hearing held before the Board.

37. This Order shall be a public record in the custody of the Board.

RESPONDENT

**COLORADO BOARD OF LICENSED
PROFESSIONAL COUNSELOR**


Tami Haddad, LPC, License No. 2393

Dated: March 3, 2011

EXAMINERS


Ronne Hines
Program Director

Effective Date: This 10th day of
March, 2011.

APPROVED AS TO FORM:

JOHN W. SUTHERS
Attorney General



Cathy Klein
Attorney for Respondent

8101 East Prentice Avenue, Suite 1000
Greenwood Village, CO 80111
Telephone: (303) 721-1200
FAX: (303) 322-9574



Laurie Rottersman
Assistant Attorney General
Business and Licensing Section
Attorneys for Licensed Professional Counselor
Examiners Board

1525 Sherman Street, 7th Floor
Denver, CO 80203
Telephone: (303) 866-5148
FAX: (303) 866-5395
E-mail: laurie.rotttersman@state.co.us